

PUBLIC INTERNATIONAL LAW

UNIT II — States: Recognition, Succession, Responsibility & Territory

LLB (3 YDC) | 4th Semester | Osmania University

Target: 75+ Marks | Aug/Sep Examination

📋 TABLE OF CONTENTS & STAR RATINGS

SECTION	TOPIC	MARKS	RATING
UNIT OVERVIEW	What's IN, What's NOT, Predictions, Key Numbers	—	—
PART A — Q1	State Recognition	6	★★★★★★
PART A — Q2	De Facto vs De Jure Recognition	6	★★★★★★
PART A — Q3	State Succession	6	★★★★★☆
PART A — Q4	State Responsibility / International Delinquency	6	★★★★★★
PART A — Q5	State Territory	6	★★★★★☆
PART A — Q6	Modes of Acquiring State Territory	6	★★★★★★
PART B — Q1	State Recognition — Theories & Practice (Essay)	15	★★★★★★
PART B — Q2	State Responsibility for Int'l Delinquencies (Essay)	15	★★★★★★
PART B — Q3	UN Membership & Recognition (from 2024 Paper Q14)	15	★★★★★☆
PART C — IRAC 1	State Responsibility Problem	10	★★★★★★
PART C — IRAC 2	State Recognition / UN Membership Problem	10	★★★★★★
QUICK REVISION	Key Numbers, Top Cases, Mnemonics, Traps	—	—

UNIT II — OVERVIEW & EXAM STRATEGY

✓ TOPICS COVERED IN THIS UNIT

- State Recognition — De Facto and De Jure; Theories of Recognition
- State Succession — to treaties, debts, territory
- Responsibility of States for International Delinquencies
- State Territory — Definition, Components
- Modes of Acquiring State Territory — Occupation, Prescription, Cession, Conquest, Accretion

✗ TOPICS NOT IN THIS UNIT (Do NOT mix)

- Sources, Nature, Codification of Int'l Law → Unit I
- Extradition, Asylum, Diplomatic Immunity, Treaties → Unit III
- Law of the Sea, Airspace, Outer Space → Unit IV
- UN, ICJ, ICC → Unit V

🎯 PREDICTED EXAM QUESTIONS (2025)

- MOST LIKELY Part B: State Recognition — Theories (Constitutive vs Declaratory) — classic essay
- MOST LIKELY Part B: State Responsibility for Int'l Delinquencies — ILC Articles 2001
- FROM 2024 PAPER Q14: UN Membership problem (State XYZ ethnic riots) — directly from this unit
- VERY LIKELY Part A: Modes of Acquiring Territory; De Facto vs De Jure Recognition

CRITICAL NUMBERS TO MEMORIZE

Montevideo Convention 1933 → Art. 1: 4 criteria for Statehood (Permanent population, Defined territory, Effective government, Capacity for int'l relations)

ILC Draft Articles on State Responsibility 2001 → Art. 1: Every int'l wrongful act of State = int'l responsibility

Vienna Convention on Succession of States in Respect of Treaties 1978

Vienna Convention on Succession of States in Respect of State Property, Archives and Debts 1983

UN Charter Art. 4 → Membership conditions: peace-loving + accept Charter + able/willing to carry out obligations

5 Modes of Acquiring Territory: Occupation, Prescription, Cession, Conquest (now illegal), Accretion



PART A — SHORT NOTES (6 Marks Each)

Instructions: Definition + 4-5 key points + 1 case + 1 example. ~1.5 pages. Time: 8-10 min.

Q1 — State Recognition ★★★★★

Definition

Recognition in International Law is the formal acknowledgment by an existing State that a new entity (State, government, or belligerent) has acquired legal personality and is entitled to the rights and duties under International Law.

Key Points

- Recognition is a political act with legal consequences — a discretionary act of the recognizing State.
- WHAT can be recognised: (1) New State; (2) New Government (unconstitutional change); (3) Belligerency; (4) Insurgency.
- WHO recognizes: Other States, International Organizations (e.g., UN admission is collective recognition).
- Two major theories: Constitutive Theory vs Declaratory Theory (see below).
- Premature recognition = interference in internal affairs — internationally wrongful act.
- Withdrawal of recognition: Rare; politically sensitive.

Two Major Theories

- CONSTITUTIVE THEORY (Oppenheim, Hegel, Anzilotti): Recognition CREATES the State as a legal person. Without recognition, no legal existence in int'l law. Criticism: What if no State recognizes? Does entity have no rights?
- DECLARATORY THEORY (Brierly, Lauterpacht, modern view): Recognition merely ACKNOWLEDGES an already existing fact. Statehood exists once Montevideo criteria are met — recognition is political, not constitutive.

 MODERN VIEW: Declaratory theory is preferred — recognition is political acknowledgment, not legal creation. Statehood = Montevideo criteria.

 *Example: Kosovo declared independence in 2008. Over 100 States recognized it, but Serbia and Russia did not. ICJ Advisory Opinion 2010 held declaration was not illegal under int'l law — but did not settle the recognition debate.*

 **Case: *Luther v. Sagor* (UK, 1921)** — UK court refused to recognize acts of Soviet government as valid until UK formally recognized Soviet Russia — constitutive theory in practice.

 **Case: *Tinoco Arbitration* (1923)** — Arbitrator Taft held that non-recognition by UK did not invalidate Tinoco government's acts — declaratory approach applied.

 **EXAM TIP:** Mnemonic: 'CONSTITUTIVE = Creates; DECLARATORY = Declares.' Modern = Declaratory. Exam tip: ALWAYS state which theory you prefer and why.

Q2 — De Facto vs De Jure Recognition ★★★★★

Definition

De Facto recognition is provisional, qualified recognition extended where a new government/State controls territory but stability is uncertain. De Jure recognition is full, permanent, unconditional recognition of a State/government as having legal standing in international law.

Comparison Table

BASIS	DE FACTO	DE JURE
Nature	Provisional, hesitant	Full, permanent
Stability	Uncertain control	Stable, established
Legal effect	Limited rights	Full rights and duties
Diplomatic relations	Informal/limited	Full diplomatic ties
Retroactivity	No retroactive effect	Retroactive from date of recognition
Example	Soviet govt 1917 (initially)	Soviet govt after 1924 UK recognition

- De Facto can be UPGRADED to De Jure once stability is established (UK upgraded recognition of Soviet Russia from De Facto to De Jure in 1924).
- De Facto recognition does NOT entitle to full diplomatic immunity or state property abroad.

 *Example: China's government: After 1949 revolution, many States initially gave De Facto recognition to People's Republic of China while maintaining De Jure relations with Republic of China (Taiwan).*

 **Case:** *Carl Zeiss Stiftung v. Rayner & Keeler Ltd (UK, 1967)* — House of Lords recognized that acts of an unrecognized government (East Germany) could be given effect through the concept of De Facto recognition.

 **EXAM TIP:** Trick: De Facto = 'Fact-based'; De Jure = 'Law-based.' De Jure is RETROACTIVE — validates past acts from the date of recognition.

Q3 — State Succession ★★★★★

Definition

State Succession occurs when one State replaces another in the responsibility for the international relations of a territory. The new State 'steps into the shoes' of its predecessor in respect of rights and obligations.

Types of State Succession

- Universal Succession: One State completely absorbs another (e.g., German Reunification 1990 — West Germany absorbed East Germany).
- Partial Succession: Part of a territory separates to form a new State (e.g., Bangladesh from Pakistan 1971).
- Dissolution: One State breaks into multiple States (e.g., USSR in 1991 → 15 States; Yugoslavia → multiple States).
- Newly Independent States: Former colonial territories (India from UK, 1947).

Succession to Treaties

- General rule (Clean Slate Theory): New State is not bound by predecessor's treaties — starts fresh.
- Exception (Moving Treaty Frontiers): Territorial treaties (boundary treaties) pass automatically — land borders remain.
- Vienna Convention on Succession of States in Respect of Treaties 1978: Codifies these rules.
- Newly independent States: Can choose to continue or not; multilateral treaties — can accede.

Succession to State Debts

- General rule: Successor State takes over public debt of predecessor proportionally.
- Odious Debts: Debts contracted for purposes hostile to interests of the people of the territory — NOT transferred (e.g., colonial exploitation debts).
- Vienna Convention on Succession of States in Respect of Property, Archives and Debts 1978.

 *Example: After dissolution of USSR in 1991, Russia was recognized as the 'Continuator State' — it assumed all treaty obligations, UN membership, and nuclear arsenal of Soviet Union. The other 14 former Soviet Republics were treated as new States.*

 **Case:** *West Rand Central Gold Mining Co. v. R (UK, 1905)* — UK not liable for debts contracted by former Boer Republics — early application of succession principles.

 **EXAM TIP:** Mnemonic: 'SUCCESSION = STEP IN' — new State steps into shoes of old. Clean Slate for new states; territorial/boundary treaties always pass. Remember: Russia = Continuator of USSR.

Q4 — State Responsibility for International Delinquencies ★★★★★

Definition

State Responsibility is the principle of international law that holds a State internationally liable when it commits an internationally wrongful act — i.e., a breach of its international obligations — attributable to it. The primary codification is the ILC Articles on State Responsibility (2001).

Elements of International Responsibility (ILC Art. 2)

■ Art. 2 ILC Articles 2001: Two elements — (a) Conduct attributable to the State; (b) That constitutes a breach of an international obligation.

- 1. ATTRIBUTION: Act must be attributable to the State — committed by: State organs (army, police, officials); persons exercising governmental authority; persons under direction/control of State.
- 2. BREACH: Violation of an existing int'l obligation — treaty, custom, general principles.
- No requirement of fault/intention as a general rule (objective responsibility) — some treaties require fault.
- Circumstances precluding wrongfulness: Consent, Self-defence, Force majeure, Distress, Necessity, Countermeasures.

Types of International Delinquency

- Denial of Justice: Failure to provide aliens access to courts or fair trial.
- Failure to protect aliens: Not protecting foreign nationals from mob violence.
- Expropriation without compensation: Taking alien property without adequate payment.
- Treaty violations: Non-performance of treaty obligations.

Consequences / Remedies

- Restitution: Restore the situation that existed before the wrongful act.
- Compensation: Payment for damage caused.
- Satisfaction: Acknowledgment, apology, punishment of responsible officials.

■ Chorzow Factory Principle: Reparation must, as far as possible, wipe out all consequences of the illegal act.

 *Example: ICJ ordered USA to pay Nicaragua approximately USD 17 billion in reparations (Nicaragua v. USA, 1986) for mining ports and supporting Contra rebels — State responsibility in action.*

 **Case: Chorzow Factory Case (PCIJ, 1928)** — Germany's unlawful expropriation of Polish factory — PCIJ held State must make full reparation; established the restitution principle.

 **Case: Corfu Channel Case (ICJ, 1949)** — Albania responsible for mines injuring British warships in its territorial waters — State responsible for acts occurring in its territory.

 **Case: Tehran Hostages Case (ICJ, 1980)** — Iran held responsible for failure to protect US Embassy staff — State responsible for inaction of officials when it has knowledge and means.

💡 EXAM TIP: Mnemonic: 'ABRC' = Attribution + Breach = Responsibility → Consequences (Restitution, Compensation, Satisfaction). ILC 2001 = THE source to cite.

Q5 — State Territory ★★★★★

Definition

State Territory is the geographical space over which a State exercises full and exclusive sovereignty — its supreme authority — in accordance with International Law. It is one of the four essential criteria for Statehood under the Montevideo Convention 1933.

Components of State Territory

- 1. Land Territory: The solid ground including islands and internal waters (rivers, lakes) within the State's boundaries.
- 2. Territorial Waters (Territorial Sea): 12 nautical miles from baseline under UNCLOS 1982 — full sovereignty, subject to right of innocent passage.
- 3. Airspace: Column of air above land and territorial sea — complete and exclusive sovereignty (Chicago Convention 1944).
- 4. Subsoil: Resources beneath land and territorial sea.
- 5. Continental Shelf: Seabed beyond territorial sea — sovereign rights over resources (up to 200 NM or extended).

Characteristics of Territorial Sovereignty

- Exclusive jurisdiction: Only the territorial State may exercise jurisdiction.
- Inviolability: No other State may enter without consent.
- Duty not to allow harm: Territory must not be used to harm other States (Trail Smelter Principle).
- Non-intervention: Other States cannot interfere in territorial affairs.

 *Example: India's territorial sea: 12 NM from baseline; Contiguous Zone: 24 NM; EEZ: 200 NM — all governed by UNCLOS 1982 which India has ratified.*

 **Case: *Island of Palmas Case (USA v. Netherlands, 1928)*** — Arbitrator Huber: Sovereignty = right to exercise the functions of a State to the exclusion of any other State. Effective occupation (Netherlands) prevailed over discovery (Spain/USA).

 **Case: *Trail Smelter Arbitration (USA v. Canada, 1938-41)*** — Canada responsible for pollution from smelter causing damage in USA — territory must not be used to cause harm to another State — foundational environmental rule.

 **EXAM TIP:** Territory = Land + Water + Air + Subsoil. Mnemonic: 'LAWS' = Land, Air, Water, Subsoil. Island of Palmas = MUST cite for territory sovereignty questions.

Q6 — Modes of Acquiring State Territory ★★★★★

Introduction

Modes of Acquiring Territory are the recognized methods by which a State extends its sovereignty over new territory. International Law recognizes five traditional modes — but CONQUEST is now ILLEGAL under the UN Charter.

1 Occupation

- Definition: Acquisition of territory that is terra nullius (belonging to no State).
- Requirements: (a) The territory must be genuinely unoccupied/unclaimed (terra nullius); (b) Effective occupation — actual administration, not mere discovery.
- Discovery alone is INSUFFICIENT — must be followed by effective, continuous control.

 **Case: *Island of Palmas Case (1928)*** — Netherlands' continuous, effective administration prevailed over Spain's mere discovery — occupation requires effectiveness.

 *Example: European powers' colonization of Africa/Asia in 19th century — justified (problematically) under occupation doctrine by claiming lands were terra nullius, ignoring indigenous peoples.*

2 Prescription

- Definition: Acquisition of territory through long, continuous, open, peaceful occupation and exercise of sovereignty — even if the territory originally belonged to another State.
- Distinguished from occupation: Prescription applies to territory that WAS once another State's; occupation applies to terra nullius.
- Requirements: Long period + continuous + undisturbed + public exercise of sovereignty + acquiescence of original owner.

 **Case: *Minquiers and Ecrehos Case (ICJ, 1953)*** — ICJ awarded islands to UK over France — UK had exercised more consistent governmental acts over islands — prescription and effective control.

3 Cession

- Definition: Voluntary transfer of territory from one State to another by treaty.
- Types: (a) Voluntary cession (sale, gift — e.g., USA purchased Alaska from Russia 1867 for \$7.2 million); (b) Forced cession (under peace treaties after war — now questionable under UN Charter).
- Must be by treaty — unilateral acts insufficient.

 *Example: Louisiana Purchase 1803: USA acquired Louisiana from France for \$15 million. Alaska Purchase 1867: USA from Russia for \$7.2 million — classic cession by sale.*

4 Conquest / Subjugation (NOW ILLEGAL)

- Historical definition: Acquisition of territory through military force followed by annexation.

 **CONQUEST IS NOW ILLEGAL** under UN Charter Art. 2(4) — prohibition on threat or use of force — and UNGA Resolution 2625 (1970) — no territorial acquisition by force.

- Any territory acquired by force after UN Charter is not legally recognized — States are not obliged to recognize such acquisition.

 *Example: Israel's annexation of Palestinian territories — widely unrecognized. Russian annexation of Crimea (2014) — most States reject as illegal under int'l law.*

5 Accretion

- Definition: Natural or artificial addition to existing territory — new land formation attaches automatically to the State whose territory it adjoins.
- Natural accretion: Volcanic islands, alluvial deposits (river sediment), delta formation.
- Artificial accretion: Land reclamation projects (e.g., Netherlands dike/polder system; Dubai's Palm Islands).
- No formality required — sovereignty passes automatically.

 *Example: Surtsey Island: Volcanic island emerged off Iceland's coast in 1963 — automatically became part of Iceland's territory by accretion.*

Comparison Summary

MODE	KEY REQUIREMENT	LEGAL STATUS
Occupation	Terra nullius + Effective control	Legal (if terra nullius genuine)
Prescription	Long + continuous + public + acquiescence	Legal
Cession	Treaty between States	Legal
Conquest	Military force + annexation	ILLEGAL under UN Charter
Accretion	Natural/artificial land addition	Legal (automatic)

 **EXAM TIP:** Mnemonic: 'OPCA-C' = Occupation, Prescription, Cession, Accretion, Conquest (ILLEGAL). Or: 'Only Peaceful Civilians Acquire Countries (Legally)' — Occupation, Prescription, Cession, Accretion, Conquest(illegal).



PART B — LONG ESSAYS (15 Marks Each)

Instructions: 4-5 pages per answer. Use headings. Cite 3+ cases. Conclude with legal basis.
Time: 20-22 min each.

Essay B1 — State Recognition: Theories, Types & Legal Effects ★★★★★

I. Introduction

Recognition is one of the most significant political-legal acts in International Law. When an existing State recognizes a new State or government, it acknowledges that entity's existence and legal personality in the international community. The act is discretionary, but its legal consequences are profound. Two competing theories — Constitutive and Declaratory — have shaped the doctrine, while practice has evolved toward a nuanced middle ground.

■ **Core question: Does recognition CREATE legal personality, or merely ACKNOWLEDGE it?**

II. Prerequisites for Statehood — Montevideo Convention 1933

Before recognizing a State, the entity must generally meet the four criteria of Article 1, Montevideo Convention on Rights and Duties of States, 1933:

- (a) Permanent population — a settled community.
- (b) Defined territory — even if disputed borders.
- (c) Effective government — control over territory and population.
- (d) Capacity to enter into relations with other States — independence.

■ **Montevideo Art. 3: 'The political existence of a State is independent of recognition by other States.' — Declaratory theory in treaty form.**

III. Constitutive Theory

The Constitutive Theory, advanced by Oppenheim, Hegel, and Anzilotti, holds that a State does not become a subject of international law until it is recognized by other States. Recognition is the legal act that creates the State's international personality.

- Only recognized States have rights and duties under international law.
- Unrecognized entities have no legal existence — cannot enter treaties, cannot sue in int'l courts.
- Support: *Luther v. Sagor* (UK, 1921) — UK courts applied this; *Carl Zeiss Stiftung* (UK, 1967).

Criticisms of Constitutive Theory:

- If recognition creates statehood, what happens if no State recognizes? Does the entity have no rights even to self-defence?
- It gives excessive political power to recognizing States.
- Allows politically motivated denials of recognition (e.g., denying recognition to new democracies for strategic reasons).

IV. Declaratory Theory

The Declaratory Theory, favored by Brierly, Lauterpacht, and the modern trend, holds that Statehood is a matter of fact — when the Montevideo criteria are met, the State exists in international law regardless of recognition. Recognition merely acknowledges this existing fact.

- Recognition does not create statehood — it is a political act confirming legal reality.
- An unrecognized State still has rights and obligations under international law.
- Support: Montevideo Convention Art. 3; *Tinoco Arbitration* (1923) — Taft refused to let UK non-

recognition nullify Costa Rican government's acts.

🏛️ **Case: *Tinoco Arbitration (1923)*** — UK challenged acts of Tinoco government claiming non-recognition. Chief Justice Taft held: an entity that effectively controls territory IS a government; recognition is not a prerequisite for legal existence.

V. Collective Recognition

- Admission to the United Nations = collective recognition by the international community.
- Procedure: Application → UNSC recommendation (must not be vetoed by P5) → UNGA approval by 2/3 majority.
- UN Charter Art. 4: Membership open to peace-loving States that accept the Charter.

🏛️ **Case: *Conditions for Admission (ICJ Advisory Opinion, 1948)*** — ICJ held: the conditions in Article 4 are exhaustive — States cannot impose additional political conditions on new members' admission.

📌 *Example: Bangladesh: Declared independence 1971; recognized by India immediately; achieved UN membership 1974 after USA's veto was eventually dropped. Shows how recognition and UN membership are interlinked.*

VI. Recognition of Governments

Recognition of government (distinct from State recognition) arises when the government changes unconstitutionally — coup, revolution, or civil war. The State continues to exist, but who represents it?

- Tobar Doctrine (1907): Do not recognize governments that come to power by unconstitutional means until confirmed by popular will.
- Estrada Doctrine (Mexico, 1930): States should not pass judgment on legitimacy of foreign governments — simply maintain or withdraw diplomatic relations. Most practical.
- Modern UK practice: UK officially stopped recognizing governments (Thatcher 1980) — judges by whether entity controls territory.

VII. Legal Effects of Recognition

- Diplomatic relations can be established.
- Recognized State can sue and be sued in recognizing State's courts.
- Acts and laws of recognized State given effect in recognizing State's courts.
- De Jure recognition is retroactive — validates all past acts of the recognized government/State.
- State property abroad passes to recognized successor.

VIII. Premature Recognition

- Recognizing a State before it meets Montevideo criteria or while still at war with parent State = premature recognition.
- Premature recognition = intervention in internal affairs of the parent State — internationally wrongful.

📌 *Example: Recognition of South Sudan: Sudan's consent was part of the Comprehensive Peace Agreement 2005 — recognition in 2011 was NOT premature because Sudan had agreed. Proper process.*

IX. Conclusion

The doctrine of recognition sits at the intersection of law and politics. The Declaratory Theory correctly identifies that statehood is a factual matter governed by the Montevideo criteria. However, recognition retains immense practical and legal significance — it opens doors to diplomatic relations, treaty-making, and access to courts. The modern approach blends both theories: statehood exists by fact; recognition acknowledges it and triggers legal consequences. Collective recognition through UN admission has become the most authoritative form of international recognition in the modern era.

Essay B2 — State Responsibility for International Delinquencies ★★★★★

I. Introduction

State Responsibility is the cornerstone of enforcement in International Law. In the absence of a world government, the doctrine ensures that States are held accountable for breaches of their international obligations. The International Law Commission's Draft Articles on Responsibility of States for Internationally Wrongful Acts (2001) — though not yet a binding treaty — are widely accepted as reflecting customary international law and are regularly cited by the ICJ.

■ ILC Art. 1 (2001): 'Every internationally wrongful act of a State entails the international responsibility of that State.'

II. Elements of an Internationally Wrongful Act (ILC Art. 2)

Two cumulative elements must be established:

- (a) Attribution: The conduct must be attributable to the State under international law.
- (b) Breach: The conduct must constitute a breach of an international obligation of the State.

There is no requirement of damage or injury as an independent element — breach alone triggers responsibility. However, damage is relevant for the remedy of compensation.

III. Attribution — When is Conduct 'Of the State'?

A State acts through human agents. ILC Articles specify which conduct is attributable:

- Acts of State organs (Art. 4): Legislature, executive, judiciary, military — all organs at all levels of government.
- Acts of persons exercising governmental authority (Art. 5): Private corporations, security guards exercising public powers.
- Acts under direction/control of State (Art. 8): Private individuals acting on instructions or under 'effective control' of State.
- Acts of insurrectional movements that succeed (Art. 10): If rebels become the new government, the State is responsible for their prior acts.
- Ultra vires acts (Art. 7): State organs acting BEYOND their authority — still attributable if they acted in official capacity.

⚖️ **Case: *Nicaragua v. USA (ICJ, 1986)*** — ICJ held: USA directly responsible for mining Nicaragua's ports. But for Contra actions, the 'effective control' test was not met — USA was NOT responsible for all Contra acts. Key case on attribution.

⚖️ **Case: *Tehran Hostages Case (ICJ, 1980)*** — Initially, militant students (private persons) seizing embassy were not attributable to Iran. BUT when Iran endorsed their acts — they became acts of the State. Attribution by subsequent endorsement.

IV. Breach of International Obligation

- Breach = failure to conform to what the obligation requires (ILC Art. 12).
- Obligation can arise from: Treaty, Custom, General Principle, ICJ Judgment, UNSC Resolution.

- Continuing wrongful acts: Breach continues as long as the act continues and State remains bound (Art. 14).
- Composite acts: Multiple acts over time together constitute a breach — e.g., systematic pattern of discrimination.

Key: There is NO requirement of intent (*dolus*) or negligence (*culpa*) as a general rule — strict liability for State organs' acts. BUT some obligations require fault (e.g., due diligence standard for treatment of aliens).

V. Circumstances Precluding Wrongfulness

Even if elements of wrongful act are met, a State may be excused if:

- Consent (Art. 20): The injured State validly consented to the conduct.
- Self-Defence (Art. 21): Lawful self-defence under UN Charter Art. 51.
- Countermeasures (Art. 22): Proportionate, non-forcible responses to prior wrongful act.
- Force Majeure (Art. 23): Irresistible force or unforeseen event beyond control making performance impossible.
- Distress (Art. 24): No other reasonable way to save lives in peril — not applicable if State contributed to distress.
- Necessity (Art. 25): Only essential interest of State threatened by grave and imminent peril — last resort.

IMPORTANT: These circumstances preclude wrongfulness — they do NOT eliminate the underlying obligation. Compensation may still be owed for material loss (Art. 27).

VI. International Delinquencies — Types

Common forms of State delinquency include:

- Denial of Justice: Failure to provide aliens with courts of justice or fair trial (exhaustion of local remedies first).
- Failure to protect aliens: Not protecting foreign nationals from mob violence when State had knowledge and means.
- Unlawful expropriation: Nationalization without prompt, adequate, effective compensation (Hull Formula).
- Breach of Treaty: Non-performance or repudiation of treaty obligations.
- Frontier incidents: Armed border violations.

Case: *Chorzow Factory (PCIJ, 1928)* — Poland's seizure of German factory = unlawful expropriation — breach of Germany-Poland Treaty. PCIJ held: must restore the factory OR pay value + lost profits. Foundational reparation case.

VII. Consequences — Reparation

ILC Art. 31: The State responsible must make full reparation for injury — material or moral.

- Restitution (Art. 35): Re-establishing the situation that existed before the wrongful act — preferred remedy; impossible if legally or materially impossible.
- Compensation (Art. 36): Payment for financially assessable damage not covered by restitution. Includes: lost profits, moral damage to individuals.

- Satisfaction (Art. 37): Non-material forms: apology, acknowledgment, assurance of non-repetition, punishment of responsible officials.

■ **Chorzow Factory Principle:** 'Reparation must, as far as possible, wipe out all the consequences of the illegal act and re-establish the situation which would, in all probability, have existed if that act had not been committed.'

VIII. Invocation of Responsibility

- Injured State: May invoke directly (Art. 42).
- Other States (*Erga Omnes*): Any State may invoke responsibility for breach of obligations owed to the international community as a whole — e.g., genocide, slavery.

🏛️ **Case: *Barcelona Traction Case (ICJ, 1970)*** — ICJ distinguished ordinary obligations (between States) from *erga omnes* obligations (owed to all States and humanity) — States have legal interest in protection of fundamental human rights.

IX. Conclusion

State responsibility is the backbone of international legal accountability. The ILC Articles 2001 represent the most comprehensive codification, embedding decades of ICJ jurisprudence into a coherent framework. The two-element test (attribution + breach), the framework of circumstances precluding wrongfulness, and the hierarchy of reparation (restitution first, then compensation, then satisfaction) provide a workable — if enforced only through political and diplomatic means — accountability system for sovereign States.

Essay B3 — UN Membership & State Recognition (2024 Paper Q14 Type)



Q14 from 2024 paper: 'State XYZ demonstrated tranquility for 9 months despite being historically marked by ethnic riots. What likelihood exists for UN to grant membership?'

I. Introduction

UN Membership is the most significant form of collective international recognition. Article 4 of the UN Charter lays down the conditions for membership, which the ICJ has held to be exhaustive. The scenario of State XYZ — with a history of ethnic violence but 9 months of relative peace — raises questions about the evidentiary standard of 'peace-loving' and the political realities of the Security Council's role.

II. Conditions for UN Membership — Article 4 UN Charter

Art. 4(1): Membership is open to all 'peace-loving States' which accept the obligations of the Charter and, in the judgment of the Organization, are able and willing to carry out these obligations.

- 1. State: Must meet Montevideo criteria — population, territory, government, capacity for int'l relations.
- 2. Peace-loving: Not defined in Charter — assessed by UN organs based on conduct.
- 3. Accept Charter obligations: Must formally sign/accept.
- 4. Able to carry out obligations: Effective government, capacity.
- 5. Willing to carry out obligations: Good faith, demonstrated through behavior.

III. Procedure for Admission

- Step 1: Application to the Secretary-General.
- Step 2: Security Council recommendation — must be approved by 9 of 15 members with NO veto from P5 (USA, UK, France, Russia, China).
- Step 3: UNGA approval by 2/3 majority of members present and voting.

🔑 **Case:** *Conditions for Admission (ICJ Advisory Opinion, 1948)* — ICJ held: conditions in Art. 4 are exhaustive. Member States CANNOT impose additional political conditions — like requiring recognition by other specific States. Must be judged on Art. 4 criteria alone.

IV. Analysis of State XYZ's Situation

Applying Art. 4 criteria to State XYZ:

- Statehood: Presumably established — XYZ is described as a State with defined territory and government.
- Peace-loving: PROBLEMATIC. History of persistent ethnic riots casts doubt. 9 months of tranquility is a very short track record. The Security Council would likely demand longer demonstrated peace.
- Willingness: Suspect given the ethnic conflict history. What concrete measures has XYZ taken — constitutional guarantees, minority protection legislation, etc.?

- UNSC veto risk: Any P5 member with strategic interest in keeping XYZ out (or in) can veto. This is the dominant political reality.

V. Assessment and Conclusion

The likelihood of UN membership for State XYZ in the near term is LOW to MODERATE. Nine months of peace is insufficient to demonstrate sustained commitment to the Charter's peace-loving requirement. The Security Council, in its discretion, would likely require: (1) A longer track record of peaceful conduct; (2) Demonstrated government control over ethnic violence; (3) No P5 veto — which depends on geopolitics. However, if all P5 approve and 9 additional UNSC members agree, the UNGA would likely follow. The ICJ's 1948 opinion confirms Art. 4 conditions are exhaustive — XYZ cannot be kept out on non-Charter grounds if it ultimately meets the five criteria.

PART C — PROBLEM QUESTIONS (IRAC Method, 10 Marks Each)

Label each section clearly: ISSUE / RULE / APPLICATION / CONCLUSION. Time: 15 min each.

IRAC 1 — State Responsibility for Private Persons' Acts (Based on 2024 Q13 type)

Scenario: Nationals of State A mob and destroy the embassy of State B in State A's capital. State B claims State A is internationally responsible. Decide.

I — Issue

Whether State A is internationally responsible for the destruction of State B's embassy by private nationals, and what conditions determine attribution of private conduct to a State.

R — Rule

- ILC Art. 1 (2001): Every internationally wrongful act of a State = int'l responsibility.
- ILC Art. 2: Two elements — (a) attributable to State; (b) breach of int'l obligation.
- ILC Art. 4: Acts of State organs are attributable — private mobs are NOT State organs.
- ILC Art. 8: Private conduct attributable IF under State's direction or effective control.
- Vienna Convention on Diplomatic Relations 1961, Art. 22: The receiving State has a SPECIAL DUTY to protect diplomatic premises.
- Tehran Hostages Case (ICJ, 1980): Initially private actors not attributable; but State becomes responsible if it fails in its duty of protection OR subsequently endorses the acts.

A — Application

Step 1 — Initial act: The mob destroying the embassy consists of private nationals of State A — they are NOT State organs (ILC Art. 4). Their initial acts are NOT automatically attributable to State A.

Step 2 — Duty of protection: Under VCDR 1961, Art. 22, State A had a SPECIAL OBLIGATION to protect State B's embassy premises. If State A's police/security forces failed to respond despite knowledge and ability to prevent — this FAILURE is attributable to State A.

Step 3 — Subsequent endorsement: If State A's government condoned or endorsed the mob's actions — as Iran did in the Tehran Hostages case — the acts become fully attributable to the State.

C — Conclusion

CONCLUSION: State A is internationally responsible for BREACH OF ITS DUTY TO PROTECT (VCDR Art. 22) even if the initial mob acts were private. If State A also endorsed the conduct, it is fully responsible for all consequences. Remedy: Restitution (rebuild embassy) + Compensation (property + staff losses) + Satisfaction (apology, prosecution of perpetrators). Precedent: Tehran Hostages Case (ICJ, 1980).

IRAC 2 — UN Membership for State XYZ (Directly from 2024 Paper Q14)

Scenario: Despite being historically marked by persistent ethnic riots, State XYZ demonstrated 9 months of tranquility and peace when applying for UN membership. What likelihood exists for UN to grant membership?

I — Issue

Whether State XYZ satisfies the conditions for UN membership under Article 4 of the UN Charter, given its history of ethnic violence and only 9 months of demonstrated peace.

R — Rule

- UN Charter Art. 4(1): Membership open to 'peace-loving States' that: (a) accept Charter; (b) are able and willing to carry out Charter obligations.
- ICJ Advisory Opinion on Conditions for Admission (1948): Art. 4 conditions are EXHAUSTIVE — no additional political conditions permitted.
- UN Charter Art. 4(2): Admission by UNGA on recommendation of UNSC.
- UNSC: 9 of 15 votes needed; NO veto by any of 5 permanent members (P5).
- Montevideo Convention 1933 Art. 1: Four criteria for Statehood — prerequisite for membership.

A — Application

- Statehood: XYZ presumed to be a State — meets Montevideo criteria.
- Peace-loving: QUESTIONABLE. 'Persistent ethnic riots' historically — suggests XYZ has not been consistently peace-loving. 9 months is a very short period to establish credibility.
- Able and willing: The history raises doubt whether XYZ's government can effectively control its territory and population to fulfill Charter obligations.
- UNSC filter: Geopolitical interests of P5 will determine — any P5 member may veto for strategic reasons beyond Art. 4 criteria in practice (despite ICJ's 1948 opinion that this is impermissible).
- Positive factor: 9 months of peace shows potential. If XYZ provides guarantees (minority protection laws, UN monitoring missions), prospects improve.

C — Conclusion

CONCLUSION: XYZ's application faces SIGNIFICANT HURDLES. Nine months of peace is legally and practically insufficient to overcome a well-documented history of ethnic violence. The 'peace-loving' requirement under Art. 4 demands demonstrated sustained commitment to peaceful conduct. Recommendation: XYZ should seek UN monitoring, enact minority protection legislation, and demonstrate at least 2-3 years of sustained peace before re-applying. Likelihood of immediate membership: LOW. ICJ 1948 Advisory Opinion: conditions are exhaustive — but UNSC's political dynamics will ultimately determine the outcome.

QUICK REVISION SHEET — UNIT II

Critical Numbers & Articles

Montevideo Convention 1933, Art. 1 → 4 criteria for Statehood
UN Charter Art. 4 → UN Membership conditions
UN Charter Art. 2(4) → Prohibition on use of force (conquest illegal)
VCDR 1961, Art. 22 → Duty to protect diplomatic premises
ILC Articles 2001, Art. 1 → State responsibility for wrongful acts
ILC Articles 2001, Art. 2 → Two elements: Attribution + Breach
VCST 1978 → Succession to Treaties
5 Modes of Territory: Occupation, Prescription, Cession, Conquest(illegal), Accretion
Alaska Purchase: 1867 — \$7.2 million (USA from Russia) — classic Cession
Louisiana Purchase: 1803 — \$15 million (USA from France)

Top Cases — One Liner Each

- Tinoco Arbitration (1923): Declaratory theory — recognition not required for legal existence.
- Luther v. Sagor (UK, 1921): Constitutive theory applied — no recognition, no legal effect.
- Conditions for Admission (ICJ, 1948): Art. 4 conditions exhaustive — no extra conditions.
- Island of Palmas (1928): Effective occupation > mere discovery; sovereignty = exclusive exercise.
- Chorzow Factory (PCIJ, 1928): Unlawful expropriation → full reparation (restitution + compensation).
- Corfu Channel (ICJ, 1949): State responsible for harm from territory even if private actors caused it.
- Tehran Hostages (ICJ, 1980): Private acts + State endorsement = State responsibility.
- Nicaragua v. USA (ICJ, 1986): 'Effective control' test for attribution — mining ports = direct.
- Barcelona Traction (ICJ, 1970): Erga omnes obligations — all States can invoke for humanity.
- Minquiers & Ecrehos (ICJ, 1953): Effective governmental acts determine sovereignty over islands.
- Trail Smelter (1941): Territory must not be used to cause harm to other States.

Memory Mnemonics

STATEHOOD (Montevideo): 'PETE' = Population, Effective govt, Territory, External relations capacity
MODES OF TERRITORY: 'OPCA-C' = Occupation, Prescription, Cession, Accretion, Conquest(illegal)
RECOGNITION THEORIES: 'C CREATES, D DECLARES' = Constitutive Creates, Declaratory Declares
STATE RESPONSIBILITY: 'AB = R' → Attribution + Breach = Responsibility
REPARATION: 'RCS' = Restitution first, Compensation second, Satisfaction third
UN MEMBERSHIP: 'P-AWAW' = Peace-loving, Accept charter, Willing, Able, Willing (Art.4)

⚠ TRAP QUESTIONS

- TRAP 1: 'Does recognition create statehood?' — NO (modern/declaratory view). It acknowledges existing fact. BUT: Constitutive theory says YES — cite both, prefer declaratory.
- TRAP 2: 'Is conquest a valid mode of acquiring territory?' — ABSOLUTELY NOT since UN Charter Art. 2(4). ILLEGAL.
- TRAP 3: 'Is State responsible for ALL acts of private persons on its territory?' — NO. Only if: duty of protection breached, OR State endorsed/directed the acts (Tehran Hostages test).
- TRAP 4: 'Do new States automatically inherit all predecessor's treaties?' — NO. Clean Slate Theory. EXCEPTION: boundary/territorial treaties pass automatically.
- TRAP 5: 'Can a P5 member impose extra conditions for UN membership?' — Legally NO (ICJ 1948). Practically YES via veto.
- TRAP 6: 'Is de facto recognition retroactive?' — NO. Only DE JURE recognition is retroactive.

📋 Last-Minute Checklist

- ☒ State Recognition: Always state both theories + modern preference (Declaratory) + Montevideo criteria
- ☒ State Responsibility: Cite ILC Articles 2001 Art. 1 & 2; use Tehran Hostages + Nicaragua cases
- ☒ Modes of Territory: Name all 5; mark Conquest as ILLEGAL explicitly
- ☒ UN Membership: Art. 4 UN Charter; UNSC + UNGA procedure; ICJ 1948 Advisory Opinion
- ☒ Succession: Clean Slate theory + exception for boundary treaties + Russia/USSR example
- ☒ Part C: Label ISSUE / RULE / APPLICATION / CONCLUSION clearly — don't mix them

🎯 FROM 2024 PAPER: Q14 (Part C) on UN Membership for XYZ = DIRECTLY from Unit II. Q13 on Fraud/Bonus = Labour Law (Unit I of Paper 1). Focus on Recognition + Responsibility + Territory modes for max marks.

— End of Unit II: States in International Law —

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